

## 25STCV06794 25STCV06794

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-06-26

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C310%2C06%2F26%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C06%2F26%2F2026)

Source SHA-256: 173c85e972ea374590f69f1457b40ec6601f55b4bb179e06bc16d0b19d31de68

Case Number: 25STCV06794 Hearing Date: June 26, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 26, 2026

Case Name: Burke v. Peralta, et al.

Case No.: 25STCV06794

Matter: Motion to Sever

Ruling: The Motion is denied without prejudice.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action arising from a motor vehicle collision.

On June 18, 2026, the Court denied Plaintiff Marcia Burke's motion to advance the trial date.

Plaintiff now seeks to sever her action from 25STCV19611. Plaintiff states that the two cases are in different procedural stages and 25STCV19611 should not slow her case down for trial.

"The trial court has broad authority to sever the trials of properly joined parties 'as the interests of justice may require.' (Code Civ. Proc., § 379.5.) Similarly, the court may order separate trials of issues or causes of action 'in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy.' (Id., § 1048, subd. (b).)" (Pilliod v. Monsanto Co. (2021) 67 Cal.App.5th 591, 625.)

Given that the trial date was not advanced, the benefits of severance are not currently apparent. The Motion to Sever is denied without prejudice.

Moving party to give notice.